

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                 |                           |                                                       |                                               |                                            |
|--------------------------------------------------|-------------------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>Rolando Vasquez                 | Team:<br>Squad #8                               | CCRB Case #:<br>201705231 | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                  |                                                 |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 06/13/2017 10:30 PM | Location of Incident:<br>In front of § 87(2)(b) | Precinct:<br>42           | 18 Mo. SOL<br>12/13/2018                              | EO SOL<br>12/13/2018                          |                                            |
| Date/Time CV Reported<br>Sun, 06/18/2017 2:07 AM | CV Reported At:<br>IAB                          | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 06/27/2017 2:17 PM |                                               |                                            |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. POM Felix Baez    | 04759  | 953654 | PSA 7   |
| 2. POM Phillip Pena  | 11192  | 956156 | PSA 7   |
| 3. SGT Lamont Gibson | 05355  | 944594 | PSA 7   |
| 4. Officers          |        |        |         |
| 5. An officer        |        |        |         |

| Officer(s)          | Allegation                                                                                 | Investigator Recommendation |
|---------------------|--------------------------------------------------------------------------------------------|-----------------------------|
| A.POM Felix Baez    | Abuse: Police Officer Felix Baez stopped § 87(2)(b)                                        | § 87(2)(b)                  |
| B.POM Phillip Pena  | Abuse: Police Officer Phillip Pena stopped § 87(2)(b)                                      | § 87(2)(b)                  |
| C.SGT Lamont Gibson | Abuse: Sergeant Lamont Gibson stopped § 87(2)(b)                                           | § 87(2)(b)                  |
| D.POM Phillip Pena  | Abuse: Police Officer Phillip Pena stopped § 87(2)(b)                                      | § 87(2)(b)                  |
| E.POM Felix Baez    | Abuse: Police Officer Felix Baez stopped § 87(2)(b)                                        | § 87(2)(b)                  |
| F.SGT Lamont Gibson | Abuse: Police Officer Lamont Gibson stopped § 87(2)(b)                                     | § 87(2)(b)                  |
| G. Officers         | Discourtesy: Officers spoke discourteously to § 87(2)(b)                                   | § 87(2)(b)                  |
| H. An officer       | Abuse: An officer strip-searched § 87(2)(b)                                                | § 87(2)(b)                  |
| I.SGT Lamont Gibson | Abuse: Sergeant Lamont Gibson searched the vehicle in which § 87(2)(b) was an occupant.    | § 87(2)(b)                  |
| J.POM Felix Baez    | Abuse: Police Officer Felix Baez searched the vehicle in which § 87(2)(b) was an occupant. | § 87(2)(b)                  |
| K.SGT Lamont Gibson | Force: Sergeant Lamont Gibson used physical force against § 87(2)(b)                       | § 87(2)(b)                  |
| L. Officers         | Force: Officers used physical force against § 87(2)(b)                                     | § 87(2)(b)                  |

### Case Summary

This complaint was filed by § 87(2)(b) on June 18, 2017 with IAB via phone. The complaint was forwarded to the CCRB under IA Log #2017-23908.

On July 31, 2017, the undersigned spoke with § 87(2)(b) criminal defense attorney, § 87(2)(b) over the phone. § 87(2)(b) stated that he did not want the CCRB to obtain a statement from § 87(2)(b) until his criminal case stemming from this incident had been resolved in court.

§ 87(2)(b) was identified as a victim in this incident by § 87(2)(b) when he filed his complaint. Eight calls were placed to § 87(2)(b) between June 30, 2017 and August 24, 2017. A voicemail requesting a call back was left after the first two calls. During the third and fourth call, the undersigned spoke with § 87(2)(b) who did not have time to speak but stated she would call me back. No call back was received after either of these calls. A voicemail was left after the fifth call. During the sixth call on July 31, 2017, § 87(2)(b) was scheduled for an interview on August 14, 2017. A follow up call was placed to § 87(2)(b) on August 11, 2017 and she confirmed that she would appear for the interview. § 87(2)(b) did not appear for her interview and did not contact the CCRB ahead of time to cancel or reschedule. Two more calls and voicemails were left for § 87(2)(b) following her missed interview. Three letters were mailed to § 87(2)(b) on July 6, 2017, July 29, 2017, and August 14, 2017. None of these letters was returned by the USPS. § 87(2)(b) also confirmed her address during a call on July 31, 2017. A DOC search on September 6, 2017 revealed that § 87(2)(b) was not incarcerated.

As of the date of this report, § 87(2)(b) has missed one appointment and has not responded to eight calls and three letters attempting to follow up on the complaint. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

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Squad: 8

|               |                 |       |       |
|---------------|-----------------|-------|-------|
| Investigator: | _____           | _____ | _____ |
|               | Signature       | Print | Date  |
| Squad Leader: | _____           | _____ | _____ |
|               | Title/Signature | Print | Date  |
| Reviewer:     | _____           | _____ | _____ |
|               | Title/Signature | Print | Date  |